

Date Of Decision: 24.8.2024 vs State Of Himachal Pradesh And Anr on 24 August, 2024

Author: Sandeep Sharma

Bench: Sandeep Sharma

2024:HHC:743

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CrMMO No. 417 of 2023

Date of Decision: 24.8.2024

Bindra Devi and Ors.

Versus

State of Himachal Pradesh and Anr.

.....Petitioners

.....Respondents

Coram

Hon'ble Mr. Justice Sandeep Sharma, Judge.
Whether approved for reporting?

For the Petitioners: Mr. Narendra Guleria, Advocate.

For the Respondents: Mr. Rajan Kahol, Mr. Vishal Panwar and Mr. B.C.

Verma, Additional Advocates General with Mr. Ravi

Chauhan, Deputy Advocate General, for the State.

Respondent No.2 ex-parte.

Sandeep Sharma, J. (Oral)

By way of present petition, prayer has been made by the petitioners-accused for quashing of FIR No. 100, dated 13.5.2017, registered at Police Station Balh, District Mandi, Himachal Pradesh, under Sections 355, 323, 504, 506 and 34 of Indian Penal Code, alongwith consequential proceedings, pending in the competent court of law, on the basis of compromise.

2. Precisely, facts of the case, as emerge from the record, are that the FIR sought to be quashed in the instant proceedings came to be lodged 2 2024:HHC:7430 at the behest of respondent No.2-complainant, who alleged that one year .

ago, she had solemnized marriage of her daughter Kalpana with person namely Vikas, but since then, she is being harassed mentally and physically by her husband and his family members. She alleged that on 13.5.2017, Bindra Devi, who is mother of Vikas alongwith other relatives came to their house for amicable settlement and when she asked about the whereabouts of her son-in-law Vikas, Bindra Devi unnecessarily picked up a quarrel and started hurling abuses. She alleged that Bindra Devi and other relatives, who had come along with her, not only gave beatings to her sister-in-law, but they also created ruckus. In the aforesaid background, FIR sought to be quashed came to be registered against the petitioners.

Though after completion of investigation, police has presented challan in the competent court of law, but before same could be taken to its logical end, petitioners have approached this Court in the instant proceedings for quashing of FIR as well as consequent proceedings on the basis of compromise and subsequent development.

3. It is averred in the petition that after lodging of FIR, Vikas, son of petitioner No.1 and Ms. Kalpana, daughter of respondent No.2, entered into compromise (Annexure P-3), thereby agreeing to settle their dispute amicably inter-se them Pursuant to aforesaid compromise, both the 3 2024:HHC:7430 parties instituted proceedings under Section 13 (B) of the Hindu Marriage .

Act, in the court of learned District Judge, Mandi, who after having recorded the statement of both the parties, proceeded to pass decree of divorce vide judgment dated 5.1.2018. As per compromise arrived inter-se parties, second party i.e. daughter of respondent No.2 agreed to withdraw all the criminal cases filed by her as well as family members against Vikas and his family members. In the aforesaid backdrop, petitioners have approached this Court in the instant proceedings for quashing of FIR.

4. Vide order dated 28.4.2023, this Court while directing the respondent-State to file reply, also issued notice to respondent No.2, however fact remains that aforesaid respondent No.2, despite

having received notice, failed to put in appearance and as such, vide order dated 21.7.2023, she was ordered to be proceeded ex-parte. Though factum with regard to amicable settlement arrived inter-se parties stood established before this court with the placing of compromise as well as copy of judgment dated 5.1.2018, passed by the District Judge, Mandi, Himachal Pradesh, whereby decree of divorce by way of mutual consent came to be passed by the competent court of law, yet this court with view to afford an opportunity to the complainant to put forth her stance, issued fresh notice vide order dated 30.7.2024, specifically directing her to come present on 4 2024:HHC:7430 the next date of hearing. This court further directed the Registry to apprise .

respondent No.2 that in case, she fails to come present on the next date of hearing despite service, this Court would be constrained to decide the case on the basis of material available on record.

5. Though pursuant to order dated 30.7.2024, respondent No.2 stands served, but yet she has chosen not to come present. In the instant proceedings, respondent No.2 came to be served twice, but despite service, she has chosen not to come present and as such, this court has reason to presume that she has nothing to say in the matter.

6. Though respondent No.1/State has filed reply, but same is silent about the compromise. However, Mr. Vishal Panwar, learned Additional Advocate General, having perused compromise placed on record as well as copy of order dated 5.1.2018, passed by the learned District Judge, Mandi, fairly states that no fruitful purpose would be served in case prayer made by the petitioners for quashing of FIR is not accepted and as such this court may pass appropriate orders. He states that on account of aforesaid development, chances of conviction of the petitioners are very remote and bleak.

7. The question which now needs consideration is whether FIR in question can be ordered to be quashed when Hon'ble Apex Court in 5 2024:HHC:7430 Narinder Singh and others versus State of Punjab and another (2014)6 .

SCC 466 has specifically held that power under S. 482 CrPC is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society.

8. At this stage, it would be relevant to take note of the judgment passed by Hon'ble Apex Court in Narinder Singh (supra), whereby the Hon'ble Apex Court has formulated guidelines for accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings. Perusal of judgment referred to above clearly depicts that in para 29.1, Hon'ble Apex Court has returned the findings that power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash criminal proceedings even in those cases which are not compoundable and where the parties have settled the matter between themselves, however, this power is to be exercised sparingly and with great caution. In para Nos. 29 to 29.7 of the judgment Hon'ble Apex Court has laid down certain parameters to be followed, while compounding offences.

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9. Careful perusal of para 29.3 of the judgment suggests that .

such a power is not to be exercised in the cases which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Apart from this, offences committed under special statute like the Prevention of Corruption Act or the offences committed by Public Servants while working in that capacity are not to be quashed merely on the basis of compromise between the victim and the offender. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly arising out of commercial transactions or arising out of matrimonial relationship or family disputes may be quashed when the parties have resolved their entire disputes among themselves.

10. The Hon'ble Apex Court in *Gian Singh v. State of Punjab and anr.* (2012) 10 SCC 303 has held that power of the High Court in quashing of the criminal proceedings or FIR or complaint in exercise of its inherent power is distinct and different from the power of a Criminal Court for compounding offences under Section 320 Cr.PC. Even in the judgment passed in *Narinder Singh's* case, the Hon'ble Apex Court has held that while exercising inherent power of quashment under Section 482 Cr.PC the Court must have due regard to the nature and gravity of the crime and its 7 2024:HHC:7430 social impact and it cautioned the Courts not to exercise the power for .

quashing proceedings in heinous and serious offences of mental depravity, murder, rape, dacoity etc. However subsequently, the Hon'ble Apex Court in *Dimpey Gujral and Ors. vs. Union Territory through Administrator, UT, Chandigarh and Ors.* (2013) 11 SCC 497 has further reiterated that continuation of criminal proceedings would tantamount to abuse of process of law because the alleged offences are not heinous offences showing extreme depravity nor are they against the society. Hon'ble Apex Court further observed that when offences of a personal nature, burying them would bring about peace and amity between the two sides.

11. Hon'ble Apex Court in its judgment dated 4th October, 2017, titled as *Parbatbhai Aahir @ Parbatbhai Bhimsinhbhai Karmur and others versus State of Gujarat and Another*, passed in Criminal Appeal No.1723 of 2017 arising out of SLP(Crl) No.9549 of 2016, reiterated the principles/parameters laid down in *Narinder Singh's* case supra for accepting the settlement and quashing the proceedings.

12. In the case at hand also, offences alleged to have been committed by the petitioners do not involve offences of moral turpitude or any grave/heinous crime, rather same are petty offences, as such, this Court deems it appropriate to quash the FIR as well as consequential 8 2024:HHC:7430 proceedings thereto, especially keeping in view the fact that Vikas and .

Kalpna, compromised the matter inter-se them, in which case, possibility of conviction of the petitioners is remote/bleak and no fruitful purpose would be served in continuing with the criminal proceedings.

13. Since parties have compromised the matter with each other and respondent No.2-complainant, at whose instance FIR sought to be quashed in the instant proceedings came to be lodged, is no more interested in pursuing the criminal prosecution of the petitioners, this court sees no impediment in accepting the prayer made on behalf of the petitioners for quashing of the FIR alongwith all consequential proceedings.

14. No doubt, in the case at hand, complainant at whose instance FIR came to be lodged has not come present before this Court despite service but prayer made by the petitioners for quashing of FIR cannot be rejected on this ground, especially when there is ample material adduced on record suggestive of the fact that parties have already compromised the matter and in terms of the compromise, son of petitioner No.1 and daughter of respondent No.2 have obtained decree of divorce by way of mutual consent by filing petition under Section 13B of the Hindu Marriage Act and they are under obligation to withdraw the cases filed by him against each other.

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15. Consequently, in view of the aforesaid discussion as well as law .

laid down by the Hon'ble Apex Court (supra), FIR No. 100, dated 13.5.2017, registered at Police Station Balh, District Mandi, Himachal Pradesh, under Sections 355, 323, 504, 506 and 34 of Indian Penal Code, alongwith consequential proceedings, is quashed and set aside. Accused are acquitted of the charges framed against them.

16. The petition stands disposed of in the aforesaid terms, alongwith all pending applications.

August 24, 2024
(manjit)

(Sandeep Sharma),
Judge